

Mohammad Rashid v. State of U.P. — s.135 complaint and summoning stayed on clause 8.2 delay plea

High Court of Judicature at Allahabad · Single Judge · 5 December 2022 · Application U/S 482 No. 32285 of 2022 · Application U/S 482 No. 32285 of 2022 · **s.135 complaint and summoning stayed till next listing**

HEADNOTE

On a section 482 application to quash a section 135 Electricity Act complaint and summoning order, the Allahabad High Court recorded that the plea that clause 8.2 of the U.P. Electricity Supply Code, 2005 required the licensee to lodge the complaint within 30 days of disconnection appeared to have force, stayed the complaint and the 8 September 2022 summoning order till the next listing, and granted time for a counter affidavit. Clause 8.2 was not finally construed.

FACTUAL SUMMARY

Mohammad Rashid sought quashing of Complaint Case No. 749 of 2019 and the 8 September 2022 summoning order under section 135 of the Electricity Act, 2003, pending before the Special Judge (E.C. Act), Rampur. The incident and disconnection were on 25 January 2019; the licensee's complaint was lodged on 12 April 2019. He contended that clause 8.2 of the U.P. Electricity Supply Code, 2005 required the complaint to be filed within 30 days of disconnection, so the delayed complaint lacked locus.

HOLDING-UNITS

INTERPLAY · UP-2005::8.2

theft-complaint-limitation

HOLDING

The Court did not quash the section 135 complaint or decide whether clause 8.2 of the U.P. Electricity Supply Code, 2005 makes a 30-day post-disconnection complaint mandatory. Finding the delay plea to appear to have force, it stayed Complaint Case No. 749 of 2019 and the summoning order dated 8 September 2022 till the next date of listing and directed a counter affidavit. ¶ 1

FLAG Order recites 'clause 8.2' without a sub-clause and attributes a 30-day complaint period to it (counsel also invoked the 2007 amendment); s.135(1A) is a 24-hour FIR duty.

PRINCIPLE TAGS

procedural-listing-no-construction Interlocutory stay of a section 135 complaint and summoning order on a clause 8.2 delay plea that was not construed; listed for counter. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 8.2 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 REQUIRES THE LICENSEE TO LODGE A SECTION 135 COMPLAINT WITHIN 30 DAYS OF DISCONNECTION, AND WHETHER THE DELAYED COMPLAINT AND 8 SEPTEMBER 2022 SUMMONING ORDER ARE LIABLE TO BE QUASHED.

The Court recorded only that the delay submissions appeared to have force and granted an interim stay pending counter. ¶ 1